

- (c) sums representing any money held by the State which has been received or appropriated for the purpose of any trust fund established by or in accordance with federal or State law.

(4) The said statement shall also show, so far as is practicable, the assets and liabilities of the State at the end of the last completed financial year, the manner in which those assets are invested or held, and the general heads in respect of which those liabilities are outstanding.

Supply Bills

15. The heads of expenditure to be met from the Consolidated Fund of the State but not charged thereon, other than the sums mentioned in paragraphs (a) and (b) of subsection 14(3) of the Eighth Schedule to the Federal Constitution, shall be included in a Bill, to be known as a Supply Bill, providing for the issue from the Consolidated Fund of the sums necessary to meet that expenditure and the appropriation of those sums for the purposes specified therein.

Supplementary and excess expenditure

16. If in respect of any financial year it is found—

- (a) that the amount appropriated by the Supply Enactment for that purpose is insufficient, or that a need has arisen for expenditure for a purpose for which no amount has been appropriated by the Supply Enactment; or
- (b) that any moneys have been expended for any purpose in excess of the amount (if any) appropriated for that purpose by the Supply Enactment,

a supplementary estimate showing the sums required or spent shall be laid before the Legislative Assembly and the heads of any such expenditure shall be included in a Supply Bill.

Withdrawals from the Consolidated Fund

17. (1) Subject to the following provisions of this section, no moneys shall be withdrawn from the Consolidated Fund unless they are—

- (a) charged on the Consolidated Fund; or
- (b) authorized to be issued by a Supply Enactment.

(2) No moneys shall be withdrawn from the Consolidated Fund except in the manner provided by federal law.

(3) Subsection (1) does not apply to any such sums as are mentioned in paragraphs (a), (b) and (c) of subsection 14(3) of the Eighth Schedule to the Federal Constitution.

(4) The State Legislature may in respect of any financial year authorize, before the passing of the Supply Enactment, expenditure for part of the year and the issue from the Consolidated Fund of any moneys required to meet that expenditure.

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NOTES

Eighth Schedule—(cont.)

Section 17

Subsection (3): The words “(a), (b) and (c)” substituted for the words “(a) and (b)” by Act 31/1965, subsection 2(2), in force from 01-07-1965.

IMPARTIAL TREATMENT OF STATE EMPLOYEES

Impartial treatment of State employees

18. All persons of whatever race in the same grade of the service of the State, shall, subject to the terms and conditions of their employment, be treated impartially.

AMENDMENT OF THE CONSTITUTION

Amendment of the Constitution

19. (1) The following provisions of this section shall have effect with respect to the amendment of the Constitution of this State.

(2) The provisions affecting succession to the throne and the position of the Ruling Chiefs and similar Malay customary dignitaries may not be amended by the State Legislature.

(3) Any other provisions may, subject to the following provisions of this section, be amended by an Enactment of the State Legislature but may not be amended by any other means.

(4) A Bill for making an amendment to the said Constitution (other than an amendment excepted from the provisions of this subsection) shall not be passed by the Legislative Assembly unless it has been supported on Second and Third Readings by the votes of not less than two-thirds of the total number of members thereof.

(5) The following amendments are excepted from the provisions of subsection (4), that is to say:

- (a) any amendment consequential on such a law as is mentioned in section 4 or section 21 of the Eighth Schedule to the Federal Constitution; and
- (aa) any amendment to the definition of the territory of the State which is made in consequence of the passing of a law altering the boundaries of the State under Article 2 of the Federal Constitution to which the State Legislative Assembly and the Conference of Rulers have consented under the said Article; and
- (b) any amendment the effect of which is to bring the Constitution of this State into accord with any of the provisions of the said Schedule, but only if it is made after the Legislative Assembly has been elected in accordance with section 4 of that Schedule.

(6) This section does not invalidate any provision of the Constitution of this State requiring the consent of any body of persons to any amendment affecting—

- (a) the appointment and attributes of an heir or heirs to the throne, of the Ruler's Consort or of the Regent or Members of the Council of Regency of the State;

Federal Constitution

NOTES

Eighth Schedule—(cont.)

Section 19

Subsections (2) & (3): See section 22.

Subsection (5)

Paragraph (*aa*) inserted by Act A193, section 6, in force from 05-05-1973.

- (b) the removal, withdrawal, or abdication of the Ruler or his heir or heirs;
 - (c) the appointment and attributes of the Ruling Chiefs or similar Malay customary dignitaries and of members of religious or customary Advisory Councils or similar bodies;
 - (d) the establishment, regulation, confirmation and deprivation of Malay customary ranks, titles, honours, dignities and awards and the attributes of the holders thereof and the regulation of the royal courts and palaces.
- (7) In this section “amendment” includes addition and repeal.

PROVISIONS IN RESPECT OF YANG DI-PERTUA NEGERI
IN RELATION TO THE STATES OF MALACCA,
PENANG, SABAH AND SARAWAK

Yang di-Pertua Negeri

19A. (1) There shall be a Yang di-Pertua Negeri of the State who shall be appointed by the Yang di-Pertuan Agong acting in his discretion but after consultation with the Chief Minister.

(2) The Yang di-Pertua Negeri shall be appointed for a term of four years but may at any time resign his office by writing under his hand addressed to the Yang di-Pertuan Agong and may be removed from office by the Yang di-Pertuan Agong in pursuance of an address by the Legislative Assembly of the State supported by votes of not less than two-thirds of the total number of its members.

(3) The Legislature may by law make provision for enabling the Yang di-Pertuan Agong, acting in his discretion but after consultation with the Chief Minister, to appoint a person to exercise the functions of the Yang di-Pertua Negeri during any period during which the Yang di-Pertua Negeri is unable to do so himself owing to illness, absence or any other cause; but no person shall be so appointed unless he would be qualified to be appointed a Yang di-Pertua Negeri.

(4) A person appointed under subsection (3) may take the place of the Yang di-Pertua Negeri as a member of the Conference of Rulers during any period during which under that subsection he may exercise the functions of the Yang di-Pertua Negeri.

Qualifications and disabilities of Yang di-Pertua Negeri

19B. (1) A person who is not a citizen or is a citizen by naturalization or by registration under Article 17* of the Federal Constitution shall not be appointed a Yang di-Pertua Negeri.

(2) The Yang di-Pertua Negeri shall not hold any office of profit and shall not actively engage in any commercial enterprise.

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

Federal Constitution

NOTES

Eighth Schedule—(cont.)

Subsection (6): See section 22.

Sections 19A, 19B, 19C & 19D

1. Inserted by Act A354, section 47, in force from 27-08-1976.
2. In subsection 19D(1), the word “Judge” substituted for the word “Justice” by Act A885, paragraph 44(c), in force from 24-06-1994.

Civil List of Yang di-Pertua Negeri

19C. The Legislature shall by law provide a Civil List of the Yang di-Pertua Negeri, which shall be charged on the Consolidated Fund and shall not be diminished during his continuance in office.

Oath of office of Yang di-Pertua Negeri

19D. (1) The Yang di-Pertua Negeri shall before exercising his functions take and subscribe in the presence of the Chief Judge or of a judge of the High Court, an oath or affirmation in the following form, that is to say:

“I,.....
having been appointed Yang di-Pertua Negeri of the State of.....
do solemnly swear (or affirm) that I will faithfully discharge my duties as
such to the best of my ability, that I will bear true faith and allegiance to
the State of.....
and to the Federation of Malaysia, and that I will preserve, protect and
defend the Constitution of the Federation of Malaysia and the Constitution
of the State of.....”.

(2) Any law made under subsection (3) of section 19A shall make provision corresponding (with necessary modifications) to subsection (1).

PART II

TEMPORARY PROVISIONS ALTERNATIVE TO
PROVISIONS IN PART I*The Executive Council (alternative to section 2)*

20. (1) The Ruler shall appoint an Executive Council.

(2) The Executive Council shall be appointed as follows, that is to say:

- (a) the Ruler shall first appoint as Menteri Besar to preside over the Executive Council a person who in his judgment is likely to command the confidence of the majority of the Assembly; and
- (b) he shall on the advice of the Menteri Besar appoint not more than ten nor less than four other persons.

(3) Notwithstanding anything in this section, a person who is a citizen by naturalization or by registration under Article 17* of the Federal Constitution shall not be appointed Menteri Besar.

(4) In appointing a Menteri Besar the Ruler may, in his discretion, dispense with any provision in the Constitution of this State restricting his choice of a Menteri Besar, if in his opinion it is necessary to do so in order to comply with the provisions of this section.

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

Federal Constitution

NOTES

Eighth Schedule—(cont.)

PART II

See Art. 71(5) & Eighth Schedule, section 22.

Section 20

Paragraph (2)(b)

The word “ten” substituted for the word “eight” by Act A919, paragraph 2(b), in force from 21-07-1995.

Subsection (3): Art. 17 which is referred to in this subsection has been repealed.

Subsection (4): *See* section 22.

(5) The Executive Council shall be collectively responsible to the Legislative Assembly.

(6) The Menteri Besar shall cease to hold office at the expiration of a period of three months from the date of his appointment, unless before the expiration of that period a resolution of confidence in him has been passed by the Legislative Assembly; and if at any time he ceases to command the confidence of the majority of the members of the Legislative Assembly, then unless at his request the Ruler dissolves the Legislative Assembly, he shall tender the resignation of the Executive Council.

(7) Subject to subsection (6), a member of the Executive Council other than the Menteri Besar shall hold office at the Ruler's pleasure, but any member of the Council may at any time resign his office.

(8) A member of the Executive Council shall not engage in any trade, business or profession connected with any subject or department for which he is responsible and shall not, so long as he is engaged in any trade, business or profession, take part in any decision of the Executive Council relating to that trade, business or profession or in any decision likely to affect his pecuniary interests therein.

Composition of Legislative Assembly (alternative to section 4)

21. (1) The Legislative Assembly shall consist of—

- (a) such number of elected members as the Legislature may by law provide; and
- (b) such number of other members, being less than the number of elected members, as the Ruler may appoint,

and, until other provision is made as aforesaid, the number of elected members shall be the number specified in Article 171* of the Federal Constitution.

(2) Notwithstanding anything in section 6 of the Eighth Schedule to the Federal Constitution, a person shall not be disqualified for being an appointed member of the Legislative Assembly by reason only that he holds an office of profit.

PART III

MODIFICATIONS OF PARTS I AND II IN RELATION TO
MALACCA AND PENANG

22. In the application of Parts I and II of this Schedule to the State of Malacca and Penang references to the Yang di-Pertua Negeri shall be substituted for references to the Ruler, and the following shall be omitted, that is to say, paragraphs (c) to (g) of subsection 1(2), section 1A, subsection 2(4), subsections (2) and (6) of section 19, subsection 20(4), in subsection 14(3) the words preceding “the sums to be shown under paragraph (b)” and in subsection 19(3) the word “other” in the first place where it occurs.

23. Part I of this Schedule shall apply to the States of Sabah and Sarawak as it applies to the States of Penang and Malacca.

*NOTE—This Article has been repealed by section 8 of the Constitution (Amendment) Act 1963 [Act 25/1963] w.e.f. 29 August 1963.

Federal Constitution

NOTES

Eighth Schedule—(cont.)

Section 21

1. See paragraph 19(5)(a).
2. Art. 171 which is referred to in subsection (1) has been repealed.

PART III

Section 22

1. The words “and Chief Minister” which appeared after the word “Governor”, the word “respectively” which appeared after the words “shall be substituted” and the words “and the Menteri Besar” which appeared after the word “Ruler” were deleted by Act 26/1963, section 70, in force from 16-09-1963.
2. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
3. The words “section 1A” were inserted after the words “section 1(2),” by Act A849, section 3, in force from 16-07-1993.

Section 23

Added by Act 26/1963, subsection 12(3), in force from 16-09-1963.

Subsection 23(1)

1. The word “and” substituted for the comma following the word “Sabah” and the words “and Singapore” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
2. The words “except for the modifications of section 10 stated in subsection (2) of this section” were deleted by Act A919, subparagraph 2(c)(i), in force from 21-07-1995.
3. Subsection 23(1) renumbered as section 23 by Act A919, subparagraph 2(c)(ii), in force from 21-07-1995.

Subsection 23(2)

Deleted by Act A919, subparagraph 2(c)(iii), in force from 21-07-1995. The original subsection 23(2) before amendment read as follows:

‘(2) Section 10 in its application to the State of Sabah or Sarawak may be modified by the substitution for the words “one of its members to be Speaker” in subsection (1) of the words “as Speaker such person as the Assembly may determine”, by the omission of the word “other” in subsection (3), and by the addition of a subsection (4)—

“(4) A person shall not be chosen to be Speaker, unless he is a member or qualified to be a member of the Legislative Assembly, and the Speaker, whether a member or not, shall vacate his office on the dissolution of the Assembly, and may at any time resign his office.”.’.